

		<i>Merck Pharmaceutical Co. v. Superior Court</i> (2000) 78 Cal.App.4th 562, 566 [holding that failure to challenge contention in brief results in the concession on that issue].) Therefore, the Proposed Intervenor has met the requirements for mandatory intervention, and in the alternative, permissive intervention. The court will grant the motion. <u>Unsigned Declaration</u> However, the Declaration of Anthony P. Silva, Esq. in Support of Motion to Intervene that was filed with the court is unsigned. A document signed under penalty of perjury and filed electronically is deemed signed only if the declarant either signed the document electronically in compliance with rule 2.257 or physically signed a printed copy before filing. (See Code Civ. Proc., § 1010.6, subd. (e)(2)(B); Cal. Rules of Court, rule 2.257(b).) If the latter procedure was used, the electronic filer must maintain the original signed declaration and make it available for inspection and copying upon request. (Cal. Rules of Court, rule 2.257(b)(2).) Here, the record does not establish whether Anthony Silva physically signed an original declaration before it was electronically filed. Accordingly, Proposed Intervenor must either file and serve a properly signed declaration or establish at the hearing that the original declaration was signed and maintained in compliance with Rule 2.257(b). If Proposed Intervenor fails to do so, the motion will be denied. Proposed Intervenor shall give notice of this ruling.
4	Thibodeau vs. Knowlton Manor Homeowners Association 30-2025-01511020	<u>Motion to Quash</u> Cross-Defendant 810 Baker Street, LLC's Motion to Quash Service of Cross-Complaint is taken OFF CALENDAR pursuant to the Notice of Withdrawal of 810 Baker Street, LLC's Motion to Quash Service of Cross-Complaint filed September 17, 2026 (ROA #78.)

5	Perez vs. General Motors, LLC 30-2024-01425638	<u>Motion for Attorney's Fees</u> There is no full written tentative ruling on this matter as the court needs to hear from the parties or their counsel on some undetermined or ambiguous matters, as explained below. The court will provide the following guidance to the parties and their counsel: 1. The court is inclined to find that the hourly rate requested by Plaintiff's Counsel is reasonable given their background and experience. However, the work done in this case did not require counsel with the high level of seniority as Attorney David Barry and Attorney Kristopher Sorit. Therefore, the hourly rates of Plaintiff's Counsel should be capped at \$550 per hour. 2. The court is inclined to find that the hours billed by Plaintiff's Counsel are reasonable except: a. It is uncertain whether Plaintiff's Counsel will expend 3 hours traveling to the hearing as it appears to be the custom of Plaintiff's Counsel to appear at all hearings remotely. b. It is unclear why Plaintiff's Counsel is withdrawing the request for an award for 6.4 hours of Attorney David Barry's time because Defendant did not file a motion to tax or strike costs. In fact, Defendant did file a motion to tax or strike costs and it was fully briefed and argued. 3. The court is inclined to deny the request for a multiplier, as this was a straightforward case that did not include any circumstances that would support a multiplier. 4. The court has already decided the issue of costs in its ruling on Defendant General Motors LLC's Motion to Tax Counsel's Memorandum of Costs. (See ROA #133.)
6	Davis vs. Chubb Insurance Company	<u>Motion for Sanctions</u>